

Court No. - 32

Case :- WRIT - C No. - 40159 of 2019

Petitioner :- Veerendra Singh

Respondent :- State Of U.P. And 03 Others

Counsel for Petitioner :- Ram Krishna Dubey

Counsel for Respondent :- C.S.C., Mukesh
Kumar Singh

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"i) issue, a writ, order or direction in the nature of certiorari for quashing the undated recovery certificate issued by the respondent no. 3 showing the amount of Rs. 5,61,533/- with other charges.

ii) issue, a writ, order or direction in the nature of Mandamus commanding the respondent no. 4 to reconnect the electricity connection of the petitioner."

Heard learned counsel for the petitioner, Sri Mukesh Kumar Singh, learned counsel for the Electricity Department, learned Standing Counsel and perused the record.

A perusal of the record shows that the provisional assessment order was passed against the petitioner and a notice was issued to the petitioner to file his objection. Thereafter, the petitioner filed a writ petition (C) No. 19049 of 2018 before this Court and this Court while disposing of the writ petition, inter alia, passed the following order;

"If it is a case of theft as reported, in the absence of any challenge raised to the checking report dated 23.08.2014, then

in that event if an first information report has been lodged the remedy of the petitioner is to seek compounding of the offence keeping in view the provisions of Section 152 of the Electricity Act, 2003. Secondly, if it is a matter of provisional assessment arising out of a theft then the remedy of the petitioner is to approach the concerned Executive Engineer for the redressal of his grievances. We are therefore not inclined to entertain this writ petition in respect of a notice which was issued on 20.01.2016 and for which the remedy is available to the petitioner under the U.P. Electricity Supply Code, 2005. The writ petition is consigned to records with the said observations."

It appears that the petitioner did not file his objection to the provisional assessment order. Consequently, recovery certificate was issued against the petitioner.

Since the petitioner has already preferred a writ petition which was disposed of with certain direction and the petitioner appears to have not complied with the order, we do not see any justification to interfere in the matter. However, in case, the petitioner makes an application to Respondent No. 4, Executive Engineer with regard to payment in instalments as provided under Paragraph 6.14 of the Electricity Code, 2005, the Executive Engineer may consider the claim of the petitioner and decide the same expeditiously in accordance with law.

With this observation, the writ petition stands finally disposed of.

Order Date :- 6.12.2019

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